

Atar Singh v. State of U.P.

High Court of Judicature at Allahabad · Division Bench · 18 May 2022 · WRIT - C No. - 9091 of 2022 · **Disposed with liberty to apply under para 6.14; no opinion on merits.**

HEADNOTE

Writ seeking installments of electricity dues for financial distress disposed of without any opinion on merits. Petitioner given three weeks to apply to respondent no. 3 under paragraph 6.14 of the U.P. Electricity Supply Code, 2005, with a certified copy of the order. On that application the licensee shall hear the petitioner and pass an appropriate order in accordance with law within two weeks.

FACTUAL SUMMARY

Atar Singh owed dues to respondent no. 3. He petitioned the Allahabad High Court in Writ-C No. 9091 of 2022, with the State of Uttar Pradesh and two others as respondents, saying financial distress had prevented him from depositing the dues and seeking leave to pay in installments. Counsel for respondent no. 3 stated that the petitioner could apply under paragraph 6.14 of Chapter VI of the U.P. Electricity Supply Code, 2005, and that the application would be considered and decided in accordance with law.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::6.14

installment payment of electricity dues

HOLDING

A consumer who seeks to pay electricity dues in installments on account of financial distress is to be relegated to an application before the licensee under paragraph 6.14 of Chapter VI of the U.P. Electricity Supply Code, 2005. The writ is disposed of without any opinion on the merits, with liberty to apply within three weeks along with a certified copy of the order. If the application is made, the licensee shall afford a reasonable opportunity of hearing and pass an appropriate order in accordance with law within the next two weeks. ¶ 1

PRINCIPLE TAGS

installment-payment-clause-6.14 The Court treated paragraph 6.14 as the clause under which the petitioner may seek payment of electricity dues in installments, and directed the licensee to consider any such application and pass an order in accordance with law after hearing. ¶ 1

instalment-facility-clause-6.14-for-financial-distress The petitioner pleaded financial distress as the reason the dues remained unpaid and sought an installment facility. The Court did not decide that plea and instead gave liberty to apply under paragraph 6.14, requiring respondent no. 3 to decide the application in accordance with law. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — WHETHER THE PETITIONER IS ENTITLED TO PAY THE DUES OF RESPONDENT NO. 3 IN INSTALLMENTS ON ACCOUNT OF FINANCIAL DISTRESS

The Court expressed no opinion on the merits and left the application to be decided by respondent no. 3 in accordance with law. ¶ 1